

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shadman Khan	Team: Squad #12	CCRB Case #: 202205456	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Sunday, 08/07/2022 2:06 AM, Sunday, 08/07/2022 3:50 AM	Location of Incident: Outside of § 87(2)(b) in Manhattan; PSA 5 stationhouse	18 Mo. SOL 2/7/2024	Precinct: 25		
Date/Time CV Reported Sun, 08/07/2022 4:14 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/19/2022 9:19 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Lutzen Leonard	04034	952983	PSA 5
2. SGT Larry Jimenez	03449	944680	PSA 5
3. PO Allyssa Byrus	19105	960095	PSA 5
4. PO John Peloso	18172	968704	PSA 5
5. PO Marcos Rodriguez	30263	954285	PSA 5
6. PO Dean Stanton	29042	967352	PSA 5

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Clement Augustin	13223	960183	PSA 5
2. PO Racine Otway	17426	970052	PSA 5
3. PO John Serrano	18583	965521	PSA 5
4. PO Jason Vera	05343	956317	PSA 5
5. PO Joseph Wozniak	10339	970326	PSA 5
6. PO Meagan Morea	12735	966231	PSA 5
7. PO Robert Mayer	05149	967596	PSA 5
8. PO Christian Fernandez	07672	967507	PSA 5
9. PO Daniel Liu	16388	967168	PSA 5
10. PO Jesus Silva	23594	970215	PSA 5
11. PO Richard Johannes	22335	972451	PSA 5
12. PO Kyle Mondesir	13466	960957	PSA 5
13. PO Patrick Richardson	11392	942427	ESU K9
14. PO Imdadul Chowdhury	19180	966508	PSA 5
15. PO David Lopez	01527	972747	PSA 5
16. PO Ana Galvan	27318	971944	PSA 5
17. PO Jose Pichardo	23681	947350	PSA 5
18. SGT Erickson Zamora	02672	953597	RTCC SMART
19. PO Ernesto Crisostomo	28489	953790	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . PO John Peloso	Discourtesy: At § 87(2)(b) in Manhattan, Police Officer John Peloso spoke discourteously to individuals.	A . Within NYPD Guidelines
B . PO John Peloso	Discourtesy: At § 87(2)(b) in Manhattan, Police Officer John Peloso spoke discourteously to individuals.	B . Substantiated
C . PO John Peloso	Off. Language: At § 87(2)(b) in Manhattan, Police Officer John Peloso made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	C . Substantiated
D . PO John Peloso	Discourtesy: At § 87(2)(b) in Manhattan, Police Officer John Peloso spoke discourteously to § 87(2)(b)	D . Substantiated
E . PO John Peloso	Discourtesy: At § 87(2)(b) in Manhattan, Police Officer John Peloso spoke discourteously to § 87(2)(b)	E . Substantiated
F . PO John Peloso	Force: At § 87(2)(b) in Manhattan, Police Officer John Peloso hit § 87(2)(b) against a vehicle.	F . Within NYPD Guidelines
G . PO Marcos Rodriguez	Force: At § 87(2)(b) in Manhattan, Police Officer Marcos Rodriguez hit § 87(2)(b) against a vehicle.	G . Within NYPD Guidelines
H . PO Dean Stanton	Force: At § 87(2)(b) in Manhattan, Police Officer Dean Stanton hit § 87(2)(b) against a vehicle.	H . Within NYPD Guidelines
I . SGT Lutzen Leonard	Force: At § 87(2)(b) in Manhattan, Sergeant Lutzen Leonard hit § 87(2)(b) against a vehicle.	I . Unfounded
J . SGT Lutzen Leonard	Force: At § 87(2)(b) in Manhattan, Sergeant Lutzen Leonard used physical force against § 87(2)(b)	J . Unfounded
K . PO Allyssa Byrus	Force: At § 87(2)(b) in Manhattan, Police Officer Allyssa Byrus used physical force against § 87(2)(b)	K . Within NYPD Guidelines
L . PO Allyssa Byrus	Abuse: At § 87(2)(b) in Manhattan, Police Officer Allyssa Byrus threatened to arrest § 87(2)(b)	L . Unfounded
M . SGT Larry Jimenez	Abuse: At § 87(2)(b) in Manhattan, Sergeant Larry Jimenez threatened to arrest § 87(2)(b)	M . Within NYPD Guidelines
N . SGT Larry Jimenez	Abuse: At the PSA 5 stationhouse, Sergeant Larry Jimenez did not process § 87(2)(b) complaint regarding (an) officer(s).	N . Unable to Determine
O . SGT Larry Jimenez	Force: At the PSA 5 stationhouse, Sergeant Larry Jimenez used physical force against § 87(2)(b)	O . Unable to Determine
§ 87(2)(g), § 87(4-b)		

Case Summary

On August 7, 2022, § 87(2)(b) filed this complaint with IAB via telephone on behalf of herself and her daughter, § 87(2)(b) generating original IAB Log § 87(2)(b). Spin off Log § 87(2)(b) was received at the CCRB on August 19, 2022.

On August 7, 2022, at approximately 2:06 AM, outside of § 87(2)(b) in Manhattan, multiple officers responded to the location as backup for an arrest initiated by PO Racine Otway and PO John Serrano of PSA 5. A large crowd of civilians gathered at the area during the arrest. PO John Peloso of PSA 5 responded and instructed unidentified civilians to “Back the fuck up,” and then said, “Yo, back the fuck up and get out” (**Allegation A: Discourtesy, Within NYPD Guidelines**). PO Peloso then said to unidentified civilians, “You’re stupid” (**Allegation B: Discourtesy, Substantiated**).

Sgt. Lutzen Leonard, PO Peloso PO Marcos Rodriguez, and PO Dean Stanton of PSA 5 handcuffed § 87(2)(b) and moved her to a police vehicle. While escorting her to the vehicle, PO Peloso said, “Put this bitch in the car.” (**Allegation C: Offensive Language, Substantiated; Allegation D: Discourtesy, Substantiated**). PO Peloso stated, “Stop kicking. Stop fucking kicking” (**Allegation E: Discourtesy, Substantiated**). PO Peloso, PO Rodriguez, and PO Stanton then pushed § 87(2)(b) chest forward onto a marked vehicle (**Allegations F to H: Physical Force, Within NYPD Guidelines**). Sgt. Leonard also allegedly pushed her (**Allegation I: Physical Force, Unfounded**). Additionally, Sgt. Leonard allegedly struck § 87(2)(b) in the face (**Allegation J: Physical Force, Unfounded**).

§ 87(2)(b) attempted to approach § 87(2)(b) PO Alyssa Byrus of PSA 5 allegedly pushed § 87(2)(b) away (**Allegation K: Physical Force, Within NYPD Guidelines**), and said that § 87(2)(b) would be arrested if she continued to approach § 87(2)(b) (**Allegation L: Abuse of Authority, Unfounded**). Sgt. Larry Jimenez of PSA 5 informed § 87(2)(b) she would be arrested if she did not leave (**Allegation M: Abuse of Authority, Within NYPD Guidelines**).

§ 87(2)(b) was subsequently released from the stationhouse with a Disorderly Conduct summons. At approximately 3:50 AM, § 87(2)(b) and other civilians visited the PSA 5 stationhouse. There, Sgt. Jimenez allegedly refused to process § 87(2)(b) complaint against officers (**Allegation N: Abuse of Authority, Unable to Determine**) and allegedly pushed her out of the stationhouse (**Allegation O: Physical Force, Within NYPD Guidelines**).

§ 87(2)(g), § 87(4-b)

The investigation received 27 body worn camera (BWC) videos regarding this incident (Board Review 01 to Board Review 27), summarized between IA #86 and IA #108.

Findings and Recommendations

Allegation (A) Discourtesy: At § 87(2)(b) in Manhattan, Police Officer John Peloso spoke discourteously to individuals.

Allegation (B) Discourtesy: At § 87(2)(b) in Manhattan, Police Officer John Peloso spoke discourteously to individuals.

§ 87(2)(b) did not allege that PO Peloso used profanity, but PO Peloso was captured using profanity in his BWC video.

In PO Peloso's BWC video (Board Review 03), at approximately 03m00s, PO Peloso and multiple officers instruct a crowd of civilians to back away from a police vehicle. The civilians yell angrily at PO Peloso and other officers. The civilians move closer to PO Peloso, while one apparently records using a phone. PO Peloso turns away from the group briefly, addressing a civilian standing behind PO Peloso, between him and the open door of the police vehicle. PO Peloso then turns back to the crowd of civilians and says, at 03m10s, "Back the fuck up." Multiple officers instruct the civilians to back away. Several civilians remain where they stand as a female civilian and § 87(2)(b) wearing a black shirt and blue jeans, move closer to the officers. At 03m38s, PO Peloso runs to PO Serrano and a female civilian. PO Peloso helps place the female civilian in handcuffs and escorts her into a marked vehicle. At 04m14s, he turns around and faces § 87(2)(b) who is being pulled back by another civilian. § 87(2)(b) again steps towards PO Peloso. A male civilian also approaches while recording officers. PO Peloso says, "Back the fuck up and get out." The male civilian shouts, "Stupid," to PO Peloso, who responds, "You're stupid," to the group of civilians as they walk away.

PO Peloso provided a statement to the CCRB on May 11, 2023 (Board Review 29). PO Peloso was assigned to a foot post at the incident location when he first noticed two officers approaching a group of civilians. The officers then arrested one of the civilians as PO Peloso approached. Multiple civilians exited nearby buildings and gathered where the arrest was taking place. A crowd of over ten civilians formed and continued to grow. Multiple civilians were shouting, pushing officers, and getting too close to the officer's faces. PO Peloso did not independently recall using any profanity during the incident.

During his CCRB interview, PO Peloso was shown portions of his BWC video, initially from 03m07s to 03m11s, during which PO Peloso says, "Back the fuck up," to the crowd of civilians. PO Peloso confirmed making the statement and explained that he did so because the civilians were getting too close to officers and were interfering in the arrest. PO Peloso was also shown his BWC video after 04m20s, which showed PO Peloso stating, "Back the fuck up and get out. You're stupid," to a group of civilians. PO Peloso explained that he was giving instructions consistent with his previous statement. PO Peloso admitted that making the statement, "You're stupid," was not the ideal manner in which to handle the situation but stated that the civilians' refusal to move away was what motivated this remark.

According to DAO-DCT case #2017-17276 (Board Review 33), language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of a violent and stressful confrontation.

According to Patrol Guide Procedure 200-02 (Board Review 34), officers are to respect the dignity of each individual and render their services with courtesy and civility.

PO Peloso's BWC video demonstrates that as he attempted to assist other officers with an arrest, a crowd of angry civilians approached and refused multiple commands to back away. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)
It is therefore recommended that **Allegation B** be closed as **Substantiated**.

Allegation (C) Offensive Language: At § 87(2)(b) in Manhattan, Police Officer John Peloso made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (D) Discourtesy: At § 87(2)(b) in Manhattan, Police Officer John Peloso spoke discourteously to § 87(2)(b)

Allegation (E) Discourtesy: At § 87(2)(b) in Manhattan, Police Officer John Peloso spoke discourteously to § 87(2)(b)

As noted, § 87(2)(b) did not allege that PO Peloso used offensive language or profanity, but PO Peloso was captured using such language in his BWC video.

In PO Peloso's BWC video (Board Review 03), at 07m10s, after PO Peloso helps escort § 87(2)(b) to a police vehicle, he says, "Put this bitch in the car." After a few seconds, he instructs § 87(2)(b) "Stop kicking. Stop fucking kicking." § 87(2)(b) shouts towards the officers and appears to struggle against officers as she is escorted to the vehicle.

During his interview (Board Review 29), PO Peloso was shown the portion of his BWC video capturing him making the statements, "Put this bitch in the car," and, "Stop fucking kicking." PO Peloso confirmed that he made these statements and stated that he did not have a good reason for having used profanity. PO Peloso made the statements because § 87(2)(b) resisted arrest, and he wanted to remove her from the location quickly because there were other civilians present and he feared for officer safety. PO Peloso did not clarify why he feared for officer safety.

According to Administrative Guide 304-06 (Board Review 38), officers are prohibited from using discourteous remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

According to Patrol Guide Procedure 200-02 (Board Review 34), officers are to respect the dignity of each individual and render their services with courtesy and civility.

As noted in the analysis of Allegations A and B, DAO-DCT case #2017-17276 (Board Review 33) states that language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of a violent and stressful confrontation.

The Administrative Guide strictly prohibits discourteous remarks made based on a person's gender. BWC videos captured PO Peloso referring to § 87(2)(b) as a "bitch." § 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **Substantiated**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Substantiated**.

Allegation (F) Force: At § 87(2)(b) in Manhattan, Police Officer John Peloso hit § 87(2)(b) against a vehicle.

Allegation (G) Force: At § 87(2)(b) in Manhattan, Police Officer Marcos Rodriguez hit § 87(2)(b) against a vehicle.

Allegation (H) Force: At § 87(2)(b) in Manhattan, Police Officer Dean Stanton hit § 87(2)(b) against a vehicle.

Allegation (I) Force: At § 87(2)(b) in Manhattan, Sergeant Lutzen Leonard hit § 87(2)(b) against a vehicle.

Allegation (J) Force: At § 87(2)(b) in Manhattan, Sergeant Lutzen Leonard used physical force against § 87(2)(b)

§ 87(2)(b) provided the CCRB with a statement on August 23, 2022 (Board Review 28). According to § 87(2)(b) she had been waiting for her daughter, § 87(2)(b) when she saw multiple officers driving in the direction of § 87(2)(b) location. § 87(2)(b) followed the vehicles and saw § 87(2)(b) being held against a vehicle by Sgt. Leonard, PO Peloso, PO Rodriguez, and PO Stanton. § 87(2)(b) attempted to pull away from the officers as they continued to hold her against the vehicle. The officers then handcuffed § 87(2)(b) who called out, “He hit me.” Upon § 87(2)(b) release from the PSA 5 stationhouse, § 87(2)(b) informed § 87(2)(b) that Sgt. Leonard had struck her in the face.

§ 87(2)(b) was uncooperative with the investigation and did not provide a statement.

The interactions in question were largely captured in BWC videos.

In Sgt. Leonard’s BWC video (Board Review 08), at 01m32s, § 87(2)(b) wearing a black top and denim shorts, shines a flashlight at the face of a uniformed officer from less than one foot away. The officer moves § 87(2)(b) hand away as Sgt. Leonard approaches, stating, “Collar.” Sgt. Leonard takes hold of § 87(2)(b) right hand as she turns to face him and attempts to pull away. Other officers take hold of § 87(2)(b) arms as Sgt. Leonard instructs her to place her hands behind her back. The camera falls to the floor and three officers are visible holding § 87(2)(b) arms.

PO Peloso’s BWC video (Board Review 03) also captured this portion of the incident. At 06m16s, § 87(2)(b) shines her flashlight at an officer’s face from several inches away, and the officer pushes her arm away. Sgt. Leonard moves forward and takes hold of § 87(2)(b) by the right arm while stating, “She’s under.” At 06m22s, PO Peloso grabs § 87(2)(b) right arm. Multiple officers move forward and grab § 87(2)(b) by the arms. § 87(2)(b) is audible, telling officers not to touch her and she pulls away from them. PO Peloso and other officers continue to hold § 87(2)(b) arms back as Sgt. Leonard places her in handcuffs. Officers continue to hold her arms as they turn her around and escort her to a marked vehicle. Sgt. Leonard is not involved when officers escort § 87(2)(b) to the marked vehicle. At 07m10s, § 87(2)(b) leans forward and pulls away from officers as they escort her. Once alongside the marked vehicle, § 87(2)(b) pulls downward again while officers try to determine who has a key to that vehicle. At 07m21s, PO Peloso, PO Stanton, and PO

Rodriguez push § 87(2)(b) chest-first against the vehicle. The push does not appear so forceful that it would cause any injury. § 87(2)(b) instructs officers to “get off,” but does not complain of any pain. She is held chest-first against the vehicle momentarily and then escorted to another vehicle.

PO Rodriguez’s (Board Review 07) and PO Stanton’s (Board Review 12) BWC video also show them holding § 87(2)(b) arms during the arrest process and beginning to escort her to the van. In PO Rodriguez’s BWC video, his camera falls to the ground at 02m55s, before he, PO Stanton, and PO Peloso move § 87(2)(b) to the van. In PO Stanton’s BWC video, at 02m43s, PO Stanton holds § 87(2)(b) as she shouts and pulls away from the officers. PO Stanton, PO Rodriguez, and PO Peloso push § 87(2)(b) against the side of the marked vehicle. The push is controlled and does not appear to be forceful. Sgt. Leonard is not involved when § 87(2)(b) is pushed against the vehicle. While PO Rodriguez’s camera falls during the initial moments of the arrest, neither video captures any officer using any manner of force beyond what is detailed above.

Collectively, the BWC videos do not capture any officer punching or otherwise striking § 87(2)(b). Additionally, no video captures any audio consistent with or indicative of any officer punching § 87(2)(b) such as § 87(2)(b) or any other civilian complaining about such use of force.

Sgt. Leonard provided a statement to the CCRB on April 6, 2023 (Board Review 30). He stated that he responded to the incident to provide backup when he saw a large crowd of approximately 20 to 30 people yelling and cursing at officers. After officers arrested two females, Sgt. Leonard instructed other civilians to disperse and depart from the location. § 87(2)(b) refused to depart despite numerous commands to do so. § 87(2)(b) then approached closely to an officer, turned on a flashlight, and shined it directly into the officer’s eyes. The action caused the crowd to reform, escalating the situation. Sgt. Leonard decided that § 87(2)(b) should be placed under arrest for Disorderly Conduct. Sgt. Leonard and several other officers approached § 87(2)(b) to place her under arrest. They did not use any force while placing § 87(2)(b) in handcuffs. Officers only took hold of § 87(2)(b) arms. Sgt. Leonard did not strike § 87(2)(b) at any point. § 87(2)(b) was escorted to a police vehicle and placed inside.

PO Peloso’s statement was consistent with Sgt. Leonard’s statement (Board Review 29). PO Peloso did not see any officer use any force beyond taking hold of § 87(2)(b). PO Peloso did not recall if § 87(2)(b) resisted while being escorted to the vehicle. PO Peloso did not describe pushing § 87(2)(b) against a vehicle. He did not see Sgt. Leonard or any other officer strike § 87(2)(b).

The investigation obtained Threat, Resistance, and Injury report # § 87(2)(b) (Board Review 32), generated by Captain Christopher Zaffiro of the 24th Precinct with regard to § 87(2)(b) arrest. The report lists Sgt. Leonard, PO Peloso, PO Rodriguez, and PO Stanton as the subject officers and notes officer engaging in wrestling and grappling in response to § 87(2)(b) active resistance. The “Details” section notes that § 87(2)(b) interfered with another arrest and placed her finger near an officer’s face while others shined bright lights into the officer’s eyes. The TRI report notes that, according to Captain Zaffiro, who reviewed BWC videos, officers used no excessive force.

According to Patrol Guide Procedure 221-01 (Board Review 37), force may be used when it is reasonable to ensure the safety of a member of the service of a third person, or otherwise protect

life, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, members of the service should consider the nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of members of service, size, age, and condition of the subject in comparison to the member of service, subject's violent history, if known, presence of hostile crowd or agitators, and subject apparently under the influence of the a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)

§ 87(2)(b) All BWC videos showed that once Sgt. Leonard gave the order to place § 87(2)(b) under arrest, officers only took hold of her arms while attempting to place her in handcuffs. Furthermore, once in handcuffs, officers had to pull § 87(2)(b) to a marked vehicle because she physically resisted against the officers who were holding her. § 87(2)(b) repeatedly pulled away from officers throughout the arrest process. In response, PO Peloso, PO Stanton, and PO Rodriguez pushed § 87(2)(b) against the side of a van to hold her still. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations F through H** be closed as **Within NYPD Guidelines**.

BWC videos show that after § 87(2)(b) was handcuffed, Sgt. Leonard was not involved in moving her to a vehicle. Furthermore, BWC videos did not capture any officers striking § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations I and J** be closed as **Unfounded**.

Allegation (K) Force: At § 87(2)(b) in Manhattan, Police Officer Allyssa Byrus used physical force against § 87(2)(b)

In her statement to the CCRB (Board Review 28), § 87(2)(b) stated that when she arrived outside of § 87(2)(b) where officers were arresting § 87(2)(b) she attempted to approach § 87(2)(b) to see if § 87(2)(b) was okay. Multiple officers instructed § 87(2)(b) to stop, and they would not allow her to approach § 87(2)(b). PO Byrus approached § 87(2)(b) took hold of her arms, and pushed her backward until she reached a gate.

In PO Byrus' BWC video (Board Review 06), at 02m53s, § 87(2)(b) dressed in a white tank top and shorts, arrives on scene. She yells, "Get off of my daughter. What are you doing to her?" PO Byrus blocks § 87(2)(b) path and places her left hand on § 87(2)(b) right shoulder to prevent her from moving forward. § 87(2)(b) yells angrily at PO Byrus not to touch her. Another officer instructs § 87(2)(b) to back away. At 03m16s, § 87(2)(b) pursues the group of officers escorting § 87(2)(b) to a police vehicle. PO Byrus uses her right hand to hold § 87(2)(b) by the right shoulder and then steps in front of § 87(2)(b) to block her path again. § 87(2)(b) yells, asking what happened with her daughter. PO Byrus places her left hand on § 87(2)(b) right shoulder and then her right wrist while telling § 87(2)(b) that she can

go to the precinct stationhouse to inquire about the arrest. At 03m37s, PO Byrus continues to block § 87(2)(b) path and then places her right hand on § 87(2)(b) left shoulder. In response, § 87(2)(b) instructs PO Byrus not to touch her.

A request for any Threat, Resistance, and Injury report for § 87(2)(b) yielded negative results (Board Review 32).

According to Patrol Guide Procedure 221-01 (Board Review 37), force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Members of service will use only the reasonable force necessary to gain control or custody of a subject.

§ 87(2)(g) PO Byrus' BWC video showed that the only physical action she took was to block § 87(2)(b) from approaching § 87(2)(b) which included placing a hand on § 87(2)(b) shoulder, holding her shoulder briefly, and holding her wrist. § 87(2)(g)

It is therefore recommended that **Allegation K** be closed as **Within NYPD Guidelines**.

Allegation (L) Abuse of Authority: At § 87(2)(b) in Manhattan, Police Officer Allyssa Byrus threatened to arrest § 87(2)(b)

Allegation (M) Abuse of Authority: At § 87(2)(b) in Manhattan, Sergeant Larry Jimenez threatened to arrest § 87(2)(b)

According to § 87(2)(b) (Board Review 28), after PO Byrus pushed her back, PO Byrus stated that § 87(2)(b) would be arrested if she continued to approach § 87(2)(b)

Although § 87(2)(b) did not make any such allegation against Sgt. Jimenez, his BWC video (Board Review 14) shows that at 04m02s, he approaches § 87(2)(b) who audibly shouts and curses at officers. § 87(2)(b) and several civilians walk past Sgt. Jimenez and other officers and shouts that PO Byrus touched her. At 04m35s, Sgt. Jimenez says to § 87(2)(b) "You're going to come with us. I understand that she's your daughter – for Disorderly Conduct. Okay? I'm being very patient with you." § 87(2)(b) continues to shout at officers throughout. A crowd of six to eight civilians stands in front of the officers at the time.

PO Byrus' BWC video (Board Review 06) shows that during her interaction with § 87(2)(b) captured between 02m55s and 03m54s, she never said that § 87(2)(b) could or would be arrested. PO Byrus only instructs § 87(2)(b) to stay back from § 87(2)(b) stay where she is, or to leave the location.

Sgt. Jimenez provided a statement to the CCRB on March 31, 2023 (Board Review 31). Sgt. Jimenez stated that he did not recall informing any civilian that they could have been arrested. However, he believed that all of the civilians on scene could have been arrested for Disorderly Conduct due to their shouting, cursing, and causing a disturbance at 2:00 AM. Sgt. Jimenez was not

shown the above-detailed portion of his BWC video during his CCRB interview.

According to Penal Law 240.20 (Board Review 40), a person is guilty of Disorderly Conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he engages in fighting or in violent, tumultuous or threatening behavior, or he makes unreasonable noise, or in a public place, he uses abusive or obscene language, or makes an obscene gesture, or without lawful authority, he disturbs any lawful assembly or meeting of persons, or he obstructs vehicular or pedestrian traffic, or he congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse, or he creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.

According to Patrol Guide Procedure 208-01 (Board Review 35), officers may make an arrest without a warrant for an offense when there is reasonable cause to believe the offense was committed in their presence, or for a crime (within their presence or not) and reasonable cause exists to believe that the arrested person committed the crime, or for a petty offense in an officer's presence (violations and infractions) and it is believed to have been committed within the arresting officer's geographical area of employment, and the arrest is made in the country of occurrence or an adjoining county.

PO Byrus' BWC video shows that she did not warn or threaten § 87(2)(b) with arrest. It is therefore recommended that **Allegation L** be closed as **Unfounded**.

As captured in BWC videos, § 87(2)(b) shouted and cursed at officers throughout the incident, § 87(2)(g)

Therefore, it is recommended that **Allegation M** be closed as **Within NYPD Guidelines**.

Allegation (N) Abuse of Authority: At the PSA 5 stationhouse, Sergeant Larry Jimenez did not process § 87(2)(b) complaint regarding (an) officer(s).

Allegation (O) Force: At the PSA 5 stationhouse, Sergeant Larry Jimenez used physical force against § 87(2)(b)

According to § 87(2)(b) (Board Review 28), approximately 30 minutes after § 87(2)(b) was arrested, § 87(2)(b) returned to the location and stated that she had received a Disorderly Conduct summons. § 87(2)(b) also said that she had thrown her phone to the ground while being arrested and suspected that officers might have picked it up, and that it could be at the stationhouse. § 87(2)(b) went to the PSA 5 stationhouse to file a complaint and possibly retrieve the phone. § 87(2)(b) went with § 87(2)(b) and two unidentified individuals. All of them entered the stationhouse and spoke to an officer about retrieving § 87(2)(b) phone. The officer stated that officers had found the phone, which was upstairs and would be brought down. After some time, an officer brought the phone downstairs and returned it to § 87(2)(b) Sgt. Leonard and an officer identified by the investigation as Sgt. Jimenez also came downstairs. § 87(2)(b) called Sgt. Leonard a coward and then stated that she wished to make a report about the earlier incident. Sgt. Jimenez replied that she could not file a report and refused to assist her. Sgt. Jimenez then pushed § 87(2)(b) approximately five to six times until she was out of the stationhouse.

As noted above, § 87(2)(b) did not provide a statement. The investigation was also unable to obtain a statement from § 87(2)(b) or to identify the other civilians present for this portion of the incident.

The investigation requested stationhouse video capturing this portion of the incident, but due to an apparent administrative error, the NYPD Legal Liaison Unit did not process the request until after stationhouse video had expired (Board Review 46).

A portion of these stationhouse interactions was captured in a BWC video recorded by PO Racine Otway of PSA 5 (Board Review 27). In PO Otway's BWC video at 00m00s, PO Otway and other officers walk behind several civilians as they move toward the stationhouse exit. § 87(2)(b) dressed in a white tank top and purple skirt, and § 87(2)(b) are among the civilians being escorted out. Officers, including PO Otway, appear to place their hands on § 87(2)(b) back as she exits the stationhouse, guiding her forward. The video does not show any officer forcefully pushing § 87(2)(b) or any other civilian. The video does not clearly capture § 87(2)(b) inside of the stationhouse and does not show whether any officer pushed her. After the civilians exit, the stationhouse doors are closed. Civilians appear to record officers using their phones, but it is unclear when they began recording. At 01m00s, audio starts, and the civilians are audibly shouting and cursing at officers from outside of the stationhouse.

According to Sgt. Jimenez (Board Review 31), he returned to the PSA 5 stationhouse after § 87(2)(b) was arrested. There, Sgt. Jimenez saw a group of civilians whom he recognized from the earlier incident. The group was inside of the stationhouse and were again being disorderly and belligerent by shouting and cursing at officers. § 87(2)(b) said that she wanted to file a CCRB complaint against officers. Sgt. Jimenez explained to § 87(2)(b) § 87(2)(b) that she could file a complaint against officers, but was unable to discuss this with her further because she cursed and screamed at Sgt. Jimenez and the other officers present. Given these circumstances, Sgt. Jimenez was unable to take § 87(2)(b) complaint. § 87(2)(b) then began to record officers while inside of the stationhouse. Because video recording was prohibited inside of the stationhouse, Sgt. Jimenez instructed § 87(2)(b) and the other civilians to exit. None of the civilians complied with the instruction to leave. As such, Sgt. Jimenez guided § 87(2)(b) to make her exit the stationhouse. Sgt. Jimenez clarified that § 87(2)(b) was more guided out than pushed.

Sgt. Leonard's statement (Board Review 30) was largely consistent with Sgt. Jimenez's regarding the civilians shouting, cursing, and recording while inside of the stationhouse. All civilians were instructed to leave but they would not listen. A group of officers escorted the civilians out of the stationhouse, but Sgt. Leonard did not see how this was done. No physical force was used to escort the civilians out of the stationhouse.

According to Patrol Guide Procedure 207-28 (Board Review 36), if a civilian visits a stationhouse to file a complaint against an officer in person, the member of service receiving the complaint must interview the complainant, provide the civilian with a Civilian Complaint Report form, furnish assistance in preparing the form, and have the complainant sign the form under the appropriate caption.

According to Administrative Guide 304-21 (Board Review 39), members of the public are not allowed to photograph and/or record police activity within Department facilities. Members of

service may order any member of the public who is photographing or recording withing Department facilities to stop such activity. If such person refuses to stop, they then should be ordered to leave the premises. If such person refuses to leave the premises, members of service may take proper enforcement action under the Trespass statutes. According to Patrol Guide Procedure 221-01 (Board Review 37), when a member of service must gain compliance of an uncooperative subject, the member should apply no more than reasonable force necessary to gain control.

§ 87(2)(g)

it is recommended that **Allegation N** be closed as **Unable to Determine**.

§ 87(2)(g)

neither BWC video nor § 87(2)(b) statement indicate whether § 87(2)(b) yelled or recorded video. § 87(2)(g)

It is therefore recommended that **Allegation O** be closed as **Unable to Determine**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
 - § 87(2)(b)
 - § 87(2)(b)
 - § 87(2)(b)
- § 87(2)(b)
 - § 87(2)(b)

- § 87(2)(b)
- PO Peloso has been a member of service for three years and a subject in six CCRB complaints and 13 allegations, of which one was substantiated.
 - 202105455 involved a substantiated allegation of physical force against PO Peloso. The Board recommended charges and the NYPD has not yet imposed discipline.
 - § 87(2)(g)
- PO Rodriguez has been a member of service for 10 years and has been named a subject in six allegations and nine allegations, of which two were substantiated.
 - § 87(2)(g)
 - § 87(2)(g)
- PO Stanton has been a member of service for four years and has been named a subject in one complaint and one allegation, which was substantiated.
 - 202105540 involved a substantiated allegation of a refusal to provide a shield number. The Board recommended formalized training and the NYPD imposed formalized training.
 - § 87(2)(g)
- PO Byrus has been a member of service for seven years and this is the first complaint to which she has been a subject.
- Sgt. Leonard has been a member of service for 10 years and has been named a subject in four complaints and ten allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Jimenez has been a member of service for 15 years and has been named a subject in six CCRB complaints and 15 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of April 26, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 43).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 12

Investigator:	<u>Shadman Khan</u>	<u>SI Shadman Khan</u>	<u>06/07/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Samuel Ross</u>	<u>IM Samuel Ross</u>	<u>06/07/2023</u>
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Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date